

1606-7
Jan. 28

demned Henry Ludlowe in 500^{li}, John younge the parson in a 1000^{li},¹ the other 2 in 100^{li} a peece, & the other thirde in 50^{li}, to be bounde to there good behauyoure, & imprisonment^{te}; & referred [Younge] to the Lo. Archbishop for his remoouinge oute of the ministrye.

[p. 299]

'Condemnare innocentem et iustificare nocentem, vterque abominabilis apud deum.'

Slander in
the King's
Bench

'Henry Ludlowe broughte an Action of the Case againste Joel Kinge for woordes, whereby he Charged him wth this facte, & recouered againste him a 100^{li} for dam-

Indictment

mages; but Joel preferred an inditement vpon this facte & it Coulede not be founde, so that it seemes M^r Ludlowe's

Written
evidence,
when good

strengthe ys greate in the Cuntrye; & therefore the Courte gaue him a 100^{li} dammages. & the Lo. Ch. Justice of Englaunde sayde that yf a man be robbed or wounded, & he wrytes downe a perfecte description of the men, wherebye they are knowne, & so dyes, this wilbe good euydence to Conuycete them: the Defendaunte in this Cause had examyned no one wytne, but had firste preferred a Crosse bille againste the plaintiffs, pretendinge that this was a practise & a iuglinge tricke, & in that bille, as they suggested, they had examyned many wytnesses, whereof they prayde to haue now the benefitte to reade them in this Cause, & the rather for that it was broughte firste into the Cowrte; but it was resolved by the Cowrte it was againste the Course of the Cowrte, & was not allowed not one to be reade *ad informandam conscientiam*.
Quod nota.

'Judicandum est de manifestis, non de occultis.'

1606-7
Feb. 13

In Camera Stellata, 13 Febr., 1606.²

SAVAGE,
NETHERSIE,
MARTIN,
GENNINGES,
and JOHN-
SON

John Sauage, £100, John Nethersie, 100 marks, Thomas Martin, £100, George Genninges, £30, and William Johnson, £30, were sentenced for building contrary to the proclamation of³ Elizabeth and 4 James,⁴ causing by this

¹ See Appendix VII.

² No names given.

³ Blank in MS.

⁴ The *Books of Proclamations* before referred to, *ante*, p. 179, n. 1, does not include any proclamation as

death, dearth, depopulation, disorder and waste of timber. The tenements to be pulled down.

fined for
building
contrary to
the pro-
clamations

There are 6,000,000 [*sic*], six hundred souls in the suburbs. London beinge *Camera regni* by the residence of the King. 'the Maior, y^e Recorder, & those that haue bene Maiors are [the] onely Justices of p. in London.' ¹

In Camera Stellata, coram consilio ibidem, Veneris, 24 April. 1607, termino Pasche.²

[p. 301]
1607
April 24

Cause of hearing against Gallette and others for riot and other practises and misdemeanours in receiving a blank warrant of the Under-Sheriff and putting a name in it, a usual fault and common with Sheriffs. And for this offence only as for a misdemeanour they fined Gallette £20, with imprisonment, and they acquitted him of the other offences, also the other defendants. 'And wished that the sherife had bene made a partie, vpon whome they woulde haue layed a heauyer Fyne for example sake.'

GALLETTE'S
case
Practice and
misdemeanour
Sentence

In Camera Stellata, 29 April. 1607.³

1607
April 29

Cause of hearing between Robinson, plaintiff, against Nethersall, formerly Mayor of Canterberrie, 'for forgerie and periurie, & againste twooe others; & did shewe forthe that Nethersall, Comminge to olde Leuette, a Clerke in Canterberrie, & findinge him full of greife & sorrowinge for the deathe of his sonne, he shewed him a bonde of his sonne's of 200^{li}. to be paid to y^e father yf the sonne dyed vnmaryed, & Nethersall Copied oute this in parchemente:

ROBINSON
v.
NETHER-
SALL
and others
Forgery and
perjury

to buildings in the fourth year of James. On p. 101, however, is printed *A Proclamation for Buildings in and about London*, which is probably the one referred to in the text, dated at Thetford, March 1, 2 James, 1604. No timber trees were to be used for charcoal or firewood; after Michaelmas then next 'no person shall build or erect any new house, or the forefront of any house in any new building, where

any former building was, within the same Citie of London, or the Suburbs thereof, or within one mile of the sayd Suburbs, except all the viter wals and windowes thereof, and the forefront of the same be wholly made of Bricke, or Bricke and stone,' etc.

¹ Page 300 is blank.

² Five Councillors and Judges were present.

³ Seven Councillors and Judges were present.

1607
April 29
p. 302]

5 Eliz. cap. 14

Sentence

Qv, if Lord
Chancellor
has a casting
vote

& afterwards nethersall, vpon a triall for the sayde dette vpon the sayde bonde, deposethe that he did see a true bonde out of w^{ch} he made that Copie; but it Coulede not appeare by any mann^r of prooffe that euer there was any true bonde; and this bonde was therefore sentenced in this Cowrte to be a Forged bonde, but no Forger then found; yet now it was proued that nicholas Leuette, one of the defendauntes, did sealle & delyuer this bonde in his brother's name after his brother was deade; & so was the sentence of the whole Courte that he was the Forger, & had his sentence for his punishement vpon the statute of 5 Eliz., cap. 14.¹ Nethersall & the other defendante, Henry Leuette, were condempned of periurye & forgerye by bothe the cheife Justices, the Lo. Knolles & Lo. of Northampton, & were acquyted by the Lo. Tresorer, lo. Archebishop & the Lo. Chauncellor as a case *non liquet*. 4 againste three: but I haue hearde y^e Lo. Chancellor hathe a Castinge voyce yf there be 4 againste 4 or three againste three, but what this Judgemente will prooue to be *Quere*; for it was well sayde by them that it were better to acquite 20 that are guyltie then Condempne one Innocente.'

1607
May 1

In Camera Stellata, coram Consilio ibidem, Veneris, 1^o Maij, 1607.²

MARGERIE
v.
DRUE
Forgery
[p. 303]

Forgery of a
will

Cause of hearing between Margerie, plaintiff, and Henry Drue, brewer and Mayor of Boston,³ defendant, for the forgery of the will of Richard Margerie, deceased. 'The defend^{te}, as he Confessed by his aunswear, Comminge to Richarde Margerie when he was sycke, he gaue him instructions by worde onelye to make his will; w^{ch} the defend^{te} did not then wryte any thinge; & the sayde Rych^d Margerie, w^{thin} 2 howers after suche instructions gyuen, dyed, & the defendante, w^{thin} 14 dayes after, wrote downe a formall wille as any Lawyer Coulede make, & sette

¹ For the punishment see Appen-
dix X.

² Eight Councillors and Judges

were present.

³ He was Mayor of Boston in
1595.

downe the perfecte disposition of all his landes & goodes, wth many legacies, so specialle & so artificialle, as it was altogether impossible for any man to doe, no, not any lawyer whatsoeuer; neither coude the memorye of man Carye awaye so muche; wth a Clause of reuocation of all former willes, & a solemne witnessinge by the partie himselfe, as though it had bene done in his lyfe time, & not as a declaracion of the intente & meaninge of his laste will; w^{ch} had bene good for goods yf aftewardes prooued as the declaracion of his intente by parolle onelye: & so bothe the cheife Justices delyuered there opinions:

'In this will the Defend^{te} had for better Collor to the same deuysed parte of the sayde Rich^d Margerie's estate to y^e Maior & Aldermen of Boston for the vse of y^e poore, & other parte of it to y^e Church, to one Doct^r wright, but y^e pl. beinge a simple, weake, younge Fellowe, & an apprentice, he woulde haue boughte his yeares; & as soone as he Came to full age he [the defendant], pretendinge to prooue a Father vnto him & to protecte him, gotte a Fefement of his lande, vpon truste as he supposed, but then he tolde him there was a will w^{ch} tooke y^e lande from him, & yet allwayes after that, & now also, denyed that there was any will; & yet, not longe before this suite began, he gotte a relleasse from him, so deuysed & penned as the lyke hathe bene seldome seene, *et clausulae inconsuetae inducunt suspicionem*. & in that was all questions, suites and controuersies touchinge y^e will relleashed; whereas there was then no question or suite concerninge y^e same.

'For this offence he had a very sharpe sentence by y^e generall Consente of all y^e Courte, accordinge to y^e statute of 5 Eliz., cap. 14:—He shall paye doble Costes & damages to y^e partie greiued, shalbe sette one the pillorie & haue bothe his eares cutt of, his nothrilles to be slitte & cutte & seared wth a hotte iron, & shall forfeite to the kinge y^e proffittes of all his landes duringe his lyfe, & haue perpetuall imprisonm^{te} duringe life.'

¹ This is the punishment imposed by the statute.

The
defendant's
cunning

and fraud

[p. 304]

Sentence

5 Eliz.
cap. 14

1607
May 6

In Camera Stellata, coram Consilio ibidem, Mercurij, 6 Maij, 1607.¹

EARL OF
LINCOLN
v.
DIMMOCK
—
Riot, etc.

Breaking
a pound

Breaking
down a pale
at night

[p. 305]

Sentence

'Cause of hearinge *enter* Th'erle of Lincolne, pl., againste S^r Edwarde Dimmocke, & other, his seruauntes, Defendauntes,² for 2 ryottes & a practise or misdemeanor in ioyninge together to delyuer a petition to y^e kinge againste the pl. the firste riot was in breakinge a pounce & takinge forceabyle Cattelle from thence, (w^{ch} are sayde to be in *Custodia legis*, & therefore to be repleuid); th'other riote was in breakinge downe 20 rodde of sawed pale in y^e nighte time, digginge vp the postes, & Carryinge them into y^e defendaunte's yarde. S^r Edwarde Dimmocke denieth all vpon his oathe. the wytnesses proue that th'other defendauntes did saye that they did it by y^e Commaundement^{te} or procuremente of S^r Edwarde Dimmocke, or else they thinke they durste not haue bene so bolde:

'For the practise, one Dethicke, one of the Defendauntes, was sentenced for y^e author of it & y^e agente in it, & he & th'other defendauntes were fyned 40^{li}, some 50^{li}, some 60^{li}, & imprisonm^{te}: but S^r Edwarde Dimmocke it seemethe was acquyted by most voyces, albeit Condempned by some.'

1607
June 10

In Camera Stellata, coram Consilio ibidem, Mercurij, 10 Junij, 1607.³

Death of Sir
John Popham, Lord
Chief Justice of the
King's
Bench

While the Courte was sitting, 'Newes was broughte that S^r John Popham,⁴ the Lo. Cheife Justice of Englaunde,

¹ Nine Councillors and Judges were present.

² See a cross bill between the same parties, *ante*, p. 233.

³ Eight Councillors and Judges were present.

⁴ Sir John Popham was born about 1531; educated at Baliol Coll., Oxford; called to the Bar at the Middle Temple; Autumn Reader, 1568; Serjeant at Law, 1578; Solicitor-gen., 1579; Attorney-gen. and Treasurer of his Inn, 1581; Speaker of

the House of Commons, 1581; Lord Chief Justice of the King's Bench, 1592; he died June 10, 1607 (aged 76), as stated in the text, and was buried at Wellington, co. Somerset, where he had built himself a house, and where he founded a hospital for the maintenance of 12 poor men and women and the education of two poor children. See Foss's *Judges*, Chalmers' *Biog. Dict.*, Collinson's *Hist. of Somerset*, ii. 483; etc.

was deade, some sayde of an vlcer in his bladder, others that he had taken pilles & the phisique neuer wroughte vpon him, others that he dyed of greife for sharpe wordes from the kinge's Ma^{tie}; but howsoeuer, he was a moste worthy man, & the state & Common wealthe receaued the greateste losse of him that euer felle since Queene Elizabeth's deathe; he was a Father of the Common wealthe, a maine pillar of the gospelle and true religion, a seuere & an vprighte Justicer, & the onely supporter of the Common lawes of Englaunde; an infinite losse the lawe & professors thereof haue of him, the gouernemente & gouernors will haue a greate misse of him, the lewder & looser sorte of people will reioyce, the godlye and vertuous doe lamente and mourne, & not wthoute iuste Cause.'

'Cause of hearinge by wydowe, pl., and Longe & others, defendauntes, for a ryotous entrie into a howse, & lockinge vp the pl., a wydowe of 80 yeares of age, & keepinge her lockte vp for 3 weekes, destroyinge her goodes, & eatinge her prouision, a very barbarous & Cruell matter: & for w^{ch} offence the principall defendaunte was Fyned 100^{li}, the reste 20^{li}. a peece, beinge seruantes, & ymprisonmente of Course, & the pl. had 50^{li}. for her dammages, & was restored to her possessyon: but vpon this difference by the Lo. Chauncellor, for that he woulde not haue it Conceaued that this [Court] medlethe wth takinge or gyuinge possession by Iniunction or otherwyse, but yf vpon hearinge & sentence it appeareth a possessyon was gayned or taken by force, forgerye or Fraude, or the lyke, then by sentence this Cowrte will settle the pl. or defendaunte for the possessyon, as he was at the time of the forgerye, Fraude or Force.'

[p. 306]
LONGE'S
case
Riotous
entry, etc.

Sentence

'Another Cause of hearinge betweene wydowe Rape & ,¹ plaintiffs, & Girlin & others, defendauntes, for a ryote, lykewyse in seruinge of proces & arrestinge a woman: the baillyes of the libertye of Blythinge² in Suffolke laye all nighte at Girlin's howse, & the nexte

RAPE
v.
GIRLIN
and others
—
Riot

¹ Blank in MS.

² Blything is one of the Hundreds of Suffolke.